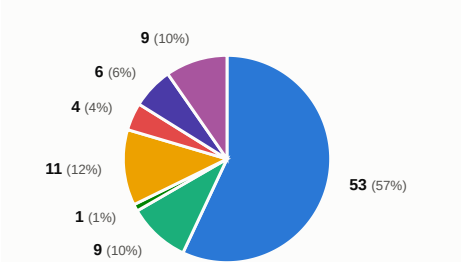


His comments across the evening, with the outcomes set aside

The six of thirteen cases in which the transcript anchors who was speaking. Categories, counting rule and exclusions are identical in all six; the other seven are not counted. Nothing here turns on whether the Board granted or denied — only on where what he said came from.



All six cases pooled · 93 statements

- Grounded in the record or the ordinance

Questions testing the applicant's case

Own expertise used against the applicant's claim

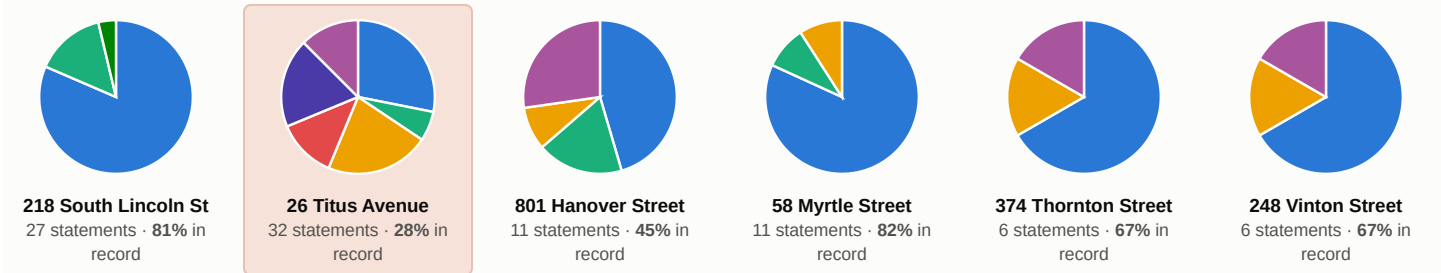
Own expertise supplied as the applicant's proof
- Stated as fact, with no source in the record

Contradicted by the testimony given

Weighed on a test the statute does not contain

Case by case

Each pie is one case, scaled to its own total, in the same order as the table below; the table's columns follow the legend order. Anchors and method: analysis/attribution.py, with every statement timestamped in the appendices.



CASE	Grounded in the record or the ordinance	Questions testing the applicant's case	Own expertise used against the applicant's claim	Own expertise supplied as the applicant's proof	Stated as fact, with no source in the record	Contradicted by the testimony given	Weighed on a test the statute does not contain	N
218 South Lincoln St	22	4	1					27
26 Titus Avenue	9	2		4	7	6	4	32
801 Hanover Street	5	2			1		3	11
58 Myrtle Street	9	1			1			11
374 Thornton Street	4				1		1	6
248 Vinton Street	4				1		1	6
All six cases	53	9	1	4	11	6	9	93

Investigator in the other five cases, advocate at Titus Avenue

The test is not whether he favoured the application — it is whether he was testing a case or building one, and where the material came from. He liked the Hanover Street plan too, and still asked when the signs would go dark and conditioned the grant; an investigator can favour an application and test it anyway. At Titus Avenue he stopped testing and started supplying.

The investigator — the other five cases

He tests the case, from paper. At South Lincoln Street he counted the applicant's own exhibit — 41 single-family, five two-family, one three-family — against the district's stated intent. At Hanover Street he recited the variance history, 1994, 1995 and 2024, all denials, off the page of the packet that lists them. At Myrtle Street he fixed lot coverage at 99% from the plan and dictated the remediation himself.

His questions can change the answer — whether three panels could serve four units, whether the house was really owner-occupied — He attaches conditions: lights off by ten; vegetation across the terrace; five spaces at 8.5 by 18.5 feet. And when he does reach outside the file, he reaches against the applicant: "that's not gonna fly with me either."

The advocate — 26 Titus Avenue

He builds the case instead, and the sources change with the role. The buffer he relies on has no landscape plan in the file. What makes the lot unique is his own memory of the bench: "I don't think we've ever seen in my years on zoning another instance." The property-value finding rests on his licence: "Also, I am a real estate broker."

Findings run against testimony taken minutes earlier — on-street parking two neighbours had just said does not exist on Calef, twenty-five feet an abutter had just said her family won in court, a cemetery counted as high-density after the engineer said no homes would be built there. The questions stop testing — two of thirty-two, both confirming what the applicant had already said. And nothing is conditioned.

Appendix — every statement counted, 26 Titus Avenue

Case ZBA2026-063. 32 statements. Timestamps are from the City's recording of September 10, 2026.

TIME	STATEMENT	CLASSIFIED AS
1:20:06	"in the redesign, you folks no longer need relief from dumpster location, townhouse parking drive, landscape or fence height?"	 Question
1:20:45	"thank you for your work in preserving the buffers"	 In the record
1:20:47	"your work to give the neighbors the 25 feet"	 Contradicted
1:20:50	"those will be left with the vegetation that's there undisturbed more or less" — confirming	 Question
1:55:45	"one of the perennial things that we see in almost all of these cases is the trees and the cutting down"	 In the record
1:55:55	"as the applicant had beat me to — when folks are doing a single family, they can cut all those trees down"	 In the record
1:56:02	"some of the primary concerns that we hear over and over are addressed by the enforced buffer in a plan development such as this"	 No source
1:56:07	"I do think this property has some very unique characteristics"	 No source
1:56:10	"18% of it has slope that's undevelopable by ordinance"	 In the record
1:56:13	"by removing curb cuts into Calef, I think we improve safety tremendously"	 No source
1:56:20	"if they're allowed to do ... those five houses, is that more in benefit of safety? Is it more benefit of the neighbors, of the spirit?"	 Wrong test
1:56:31	"I think this area is a transitional area in that neighborhood"	 Wrong test
1:56:38	"MX1, R1, any of the densities, they're not solely that. There are pieces that are exceptions"	 In the record
1:56:48	"We see a large multi-dwelling unit here ... the school, an entire side of it is cemetery"	 In the record
1:57:00	"the added buffers proposed here do create a reasonable buffer of landscape to the other properties"	 No source
1:57:04	"I don't think we've ever seen in my years on zoning another instance of properties that organically have such a large buffer"	 Expertise — as proof
1:57:18	"I do believe this is the best plan for this lot"	 Wrong test
1:57:22	"It is singularly unique in its size at 1.1 acre"	 Contradicted
1:57:28	"the buffers create a lot of alleviation to the problems we have"	 No source
1:57:31	"a lot of the other problems are addressed in the plan review process"	 In the record
1:57:48	Findings: "It's a tremendously unique lot at 1.1 acres"	 Contradicted
1:57:52	Findings: "a lot of slopes including 18% that is undevelopable based on the city's calculation of the slope review"	 In the record
1:57:58	Findings: "the quieting of title on the paper street creates additional buffers ... whether through the applicant or the other neighbours' efforts"	 Contradicted
1:58:08	Findings: "there are additional buffers then beyond what the plan development requires in itself"	 No source
1:58:15	Findings: "it reduces the need for curb cuts on Calef Road"	 In the record
1:58:18	Findings: "and preserves existing on street parking"	 Contradicted
1:58:26	Findings: the entrance is "off of Titus Avenue, which is in general safer to turn on to than the busier Calef"	 No source
1:58:54	Findings: "several other mixed or high density uses including the large development to the south, the cemetery and the Zion School"	 Contradicted
1:59:02	Findings: "Also, I am a real estate broker"	 Expertise — as proof
1:59:07	Findings: "I'm not aware of any circumstance where a development of this nature in Manchester has diminished a property around it. I've never seen a report or evidence of that"	 Expertise — as proof
1:59:16	Findings: "In general, reasonably well thought out development increases values"	 Expertise — as proof
1:59:18	Findings: "a tremendous amount of thought has been put into this, further evidenced by the applicant taking an additional month to rework and reduce counts"	 Wrong test

Appendix — every statement counted, 218 South Lincoln Street

Case ZBA2026-055, heard immediately before Titus Avenue the same evening. 27 statements.

TIME	STATEMENT	CLASSIFIED AS
0:33:51	"The three panels, though, it's house unit one and unit two, correct? So you need four at a third unit?"	 Question
0:36:24	"So that's not owner-occupied as you're presenting?"	 Question
0:36:30	"Anything can or will be, but that's not what it is"	 In the record
0:36:38	"what was the reason that it was allowed to degrade to its current state?"	 Question
1:00:04	"The inability to subdivide's not a hardship, it's absurd"	 In the record
1:00:13	"we have to remember that this was submitted under the old zoning ... this neighborhood was R2"	 In the record
1:00:20	"the specific spirit of that ordinance was a mix of single and duplexes"	 In the record
1:00:26	"when we look at the applicant's own exhibit, they've submitted that there's 41 singles, five two families, and one three"	 In the record
1:00:35	"this is clearly out of the spirit of the ordinance by definition"	 In the record
1:00:38	"it's also not in keeping with the character of this neighborhood"	 In the record
1:00:46	"I just don't see how creating the extra unit here is meeting the spirit of that or creating substantial justice to the neighbors"	 In the record
1:00:59	"there's no evidence that this was ever intended to be a third"	 In the record
1:01:06	"a house panel's gonna be needed to operate the one boiler system with the multi-zone, so that's not gonna fly with me either"	 Expertise — against
1:01:15	"just the fact that they overbuilt this house, which has been stated that the applicant had their own hand in, that's not a hardship"	 In the record
1:01:21	"if it is to be considered it's self-created"	 In the record
1:01:24	"there's no evidence here in my mind that the spirit's observed or any substantial justice is done, let alone a hardship"	 In the record
1:01:41	"it's existed as a two family for well over 50 years ... that kinda mutes that point in my book"	 In the record
1:01:55	"you say you've vacated apartment number two. What's going on in apartment number one?"	 Question
1:02:57	Findings: "I recognize that there are some points that the applicant has made that are factual"	 In the record
1:03:06	Findings: "This property is one of the largest lots in this neighborhood"	 In the record
1:03:10	Findings: "these are large units. We have a unit that's 1,800 square feet"	 In the record
1:03:15	Findings: "the applicant had a hand in building this and chose to create these large units"	 In the record
1:03:24	Findings: "The neighborhood ... as presented at this application is an R2 zone"	 In the record
1:03:27	Findings: "the spirit of that is a mix of single families and duplexes"	 In the record
1:03:34	Findings: "By the counts of the applicant's own submission, there are 41 single families, five two families, and one three family ... omitting the subject property"	 In the record
1:03:48	Findings: "this is not in the spirit of the ordinance and substantial justice is not done by creating the density of a three family in this district"	 In the record
1:04:18	Findings: "I tend to agree that a three family may not diminish the values of the property around it. So ... I don't believe that the property values will be diminished"	 In the record

The contrast is the point of the first page. At South Lincoln Street the Vice Chair worked from the applicant's own exhibit, the district's stated intent, and the evidence in the file, and used his outside knowledge once — to reject a claim the applicant had made. An hour later, at Titus Avenue, he supplied the applicant the property-value opinion its engineer had told the Board it did not obtain.